

ORDINANCE NO. \_\_\_\_\_

**ENTITLED: "AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 5.04, BUSINESS LICENSES GENERALLY, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING."**

BE IT HEREBY ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE WYOMING:

Section 1. That various sections of Chapter 5.04, Business Licenses Generally, of Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne, Wyoming, are hereby amended as set out in this ordinance.

**5.04.100 Suspension and revocation.**

In the event the ~~mayer or city council~~ city clerk deems a license or permit should be suspended or revoked, the following procedure shall be followed:

A. The licensee or permittee will be notified, in writing, by certified mail, by the city clerk at least seven days prior to the action contemplated, stating the reasons therefor.

B. Upon receipt of the notice, the licensee or permittee may request a hearing. The request must be in writing and received by the city clerk within seven days of receipt of the notice. Failure on the part of the licensee or permittee to request a hearing in writing within the specified time period shall be deemed a waiver of the licensee's or permittee's right to request a hearing.

C. If a hearing is requested and received by the city clerk within the specified time period, ~~the city clerk will schedule a hearing before the governing body and notify the licensee or permittee, in writing, by certified mail of the date, time and place of the meeting the matter shall follow the provisions of Chapter 2.92, Administrative Hearing Procedure.~~

~~D. At the hearing, the licensee/permittee and other interested parties may be in attendance to present any information relative to the proposed suspension or revocation of the license or permit. The hearing, deliberations and notification of decision regarding the suspension or revocation will be conducted pursuant to the Wyoming Administrative Procedure Act, Wyo. Stat. Sections 16-1-103, et seq. The city clerk will notify the licensee/permittee in writing, by certified mail, of the governing body decision as the result of the hearing.~~

**5.04.110 Emergency suspension.**

If the ~~mayer~~ city clerk finds that cause exists for an immediate suspension or revocation of a license or permit, he or she may enter an order for immediate suspension of same. The licensee or permittee, upon notice of suspension or revocation, may request an immediate hearing ~~before the governing body and the hearing will be conducted in the manner prescribed in Section 5.04.100 pursuant to Chapter 2.92, Administrative Hearing Procedure.~~

Section 2. That sections currently existing in Chapter 5.04 not set out within this ordinance remain unchanged.

Section 3. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: \_\_\_\_\_

SECOND READING: \_\_\_\_\_

THIRD AND FINAL READING: \_\_\_\_\_

\_\_\_\_\_  
Patrick Collins, Mayor

(SEAL)

ATTEST:  
  
\_\_\_\_\_  
Kristina F. Jones, City Clerk

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